

SUPREME COURT OF THE STATE OF NEW YORK
QUEENS COUNTY

-----X-----

LATRENA GRAY : Index No.:

Plaintiff

against

SUMMONS

CITY OF NEW YORK, P.O. CHRISTOPHER GHEE,
P.O. ANTHONY ZANFARDINO

Defendant

-----X-----

THE PLAINTIFF DESIGNATES QUEENS COUNTY AS THE PLACE OF TRIAL.
THE BASIS OF THE VENUE IS LOCATION OF INCIDENT

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, on the Plaintiff's attorney within twenty (20) days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: June 25, 2024

Uwem Umoh

Uwem Umoh, Esq.
Attorney for Plaintiff
90 Broad St, 10th Floor
New York, NY 10004
718-360-0527

**SUPREME COURT OF THE STATE OF NEW YORK
QUEENS COUNTY**-----
LATRENA GRAY

Index No.

Plaintiff

-v-

CITY OF NEW YORK, P.O. CHRISTOPHER GHEE,
P.O. ANTHONY ZANFARDINO

VERIFIED COMPLAINT

Defendant(s)

TAKE NOTICE, the Plaintiff, LATRENA GRAY, hereby appears in this action by her attorneys, Umoh Law Firm, and demands that all papers be served upon her, at the address below, in this matter.

Plaintiff, LATRENA GRAY, by her attorney, Uwem Umoh Esq., complaining of the defendants, City of New York, Officer Christopher Ghee and Officer Anthony Zanfardino collectively referred to as the Defendants, upon information and belief alleges as follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to the plaintiff under color of statute, ordinance, regulation, custom, and or to redress the deprivation of rights, privileges, and immunities secured to the plaintiff by the Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States, and by Title 42 U.S.C. § 1983 [and § 1985], New York City Administrative Code §8-802 et seq, and arising under the common law and statutes of the State of New York.

2. This is an action to further seek compensation for the serious and permanent personal injuries sustained by the plaintiff, as a result of the negligence of the defendants, perpetrated while said defendants unlawfully, entered plaintiff's premises, unlawfully arrested and maliciously prosecuted plaintiff.

PARTIES

3. At all times relevant, Plaintiff LATRENA GRAY resided in Queens County, New York

and is a resident of the State of New York.

4. Defendant Police Christopher Ghee is, and at all times relevant to this action, was an officer employed by the City of New York and acting under color of state law. He is being sued in both his individual and official capacity.

5. Defendant Police Officer Anthony Zanfardino is, and at all times relevant to this action, was an officer employed by the City of New York and acting under color of state law. He is being sued in both his individual and official capacity.

6. City of New York is a municipality in the State of New York.

FACTUAL ALLEGATIONS COMMON TO ALL CAUSES OF ACTION

7. This action is for violation of constitutional rights, personal injuries and economic loss due to the unlawful search, false arrest and malicious prosecution of plaintiff. On or about July 10, 2021 AT 6:00 am, the defendants, employed by the NYPD arrested plaintiff and conspired with her landlord to concoct evidence to support what they knew to be a false arrest. Police arrived at Gray's premises at 120 Beach 19th street, Queens NY 11691 on or about 6:00 am and claimed they had a warrant for her arrest. They officers only had an I-Card.

8. Defendants also did not have permission from Gray to enter her apartment. The subsequent arrest of plaintiff was thus unlawful as was her prosecution and defendants knew this at the time they arrested her. Plaintiff was unlawfully arrested and prosecuted, and denied a fair trial as the defendants forwarded false information to the prosecutor.

9. That at no time during the arrest was plaintiff read her Miranda rights.

10. At no time did plaintiff commit any offense against the laws of New York City and or State for which an arrest may be lawfully made. At no time did the plaintiff trespass at the alleged property or commit any illegal acts, or engage in any conduct which in any way justified the brutal and unlawful actions of the police.

11. As a direct and proximate result of defendants' actions, plaintiff suffered and continues to

suffer injuries, including but not limited to left shoulder pain, emotional distress, nightmares, panic attacks, mental anguish and unwarranted severe anger bouts some or all of which may be permanent.

12. The unlawful arrest of plaintiff, plaintiff's wrongful imprisonment and malicious prosecution, because of defendants' knowledge of a lack of any legitimate cause or justification, were intentional, malicious, reckless and in bad faith.

13. As a direct and proximate result of defendants' actions, plaintiff suffered and continues to suffer, mental anguish, repetitive injury, psychological and emotional distress, and physical pain and suffering, some or all of which may be permanent.

14. As a direct and proximate result of her unlawful detention, assault, confinement, Plaintiff has lived in terror of their attack, and continues to suffer from nightmares, and is fearful of going outside and suffers various emotional attacks, in addition, and having been unable to function normally which has caused a severe strain and breakdown in her personal relationships, in and outside of her home.

15. As a direct and proximate result of defendant's actions, plaintiff was arrested, detained without just or probable cause.

16. As a direct and proximate result of defendants' actions, plaintiff was deprived of rights, privileges and immunities under the Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution and the laws of the City of New York and the State of New York.

17. The actions of defendants, acting under color of State law, deprived plaintiff of her rights, privileges and immunities under the laws and Constitution of the United States; in particular, the rights to be secure in her person and property, to be free from the excessive use of force and from malicious prosecution, abuse of process, and the right to due process.

AS A FIRST CAUSE OF ACTION:

42 U.S.C Section 1983- False Arrest and Malicious Prosecution

Against Police Officers Only

18. Plaintiff hereby restates all paragraphs above of this complaint, as though fully set forth below
19. By detaining, imprisoning and maliciously prosecuting Latrena Gray without justification, probable cause or reasonable suspicion, the Officers, Defendants' falsely arrest plaintiff and deprived her of rights, remedies, privileges, and immunities guaranteed to every citizen of the United States, in violation of 42 U.S.C. Section 1983, including, but not limited to, rights guaranteed by the Fourth, Fifth, Eighth and Fourteenth Amendments of the United States Constitution.
20. In addition, the Defendant officers conspired among themselves to deprive plaintiff of her constitutional rights secured by 42 U.S.C. Section 1983, and by the Fourth, Fifth, Eighth and Fourteenth Amendments to United States Constitution, and took numerous overt steps in furtherance of such conspiracy, as set forth above.
21. The Defendant Officers acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employment as NYPD Officers. Said acts by the Defendants Officers were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers, and said Defendants acted willfully, knowingly, and with the specific intent to deprive the Plaintiff of her constitutional rights secured by 42 U.S.C. Section 1983, and by the Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution.
22. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages herein before stated.

AS A SECOND CAUSE OF ACTION:

42 U.S.C Section 1983 – Due Process Violation

Against Police Officers Only

23. Plaintiff hereby restates all paragraphs above of this complaint, as though fully set forth below
24. By maliciously prosecuting Latrena Gray without justification, probable cause, the Officers, Defendants deprived Plaintiff of rights, remedies, privileges, and immunities guaranteed to every citizen of the United States, in violation of 42 U.S.C. Section 1983, including, but not limited to, rights guaranteed by the Fourth, Eighth and Fourteenth Amendments of the United States Constitution.
25. In addition, the Defendant officers and district attorney conspired among themselves to deprive plaintiff of her constitutional rights secured by 42 U.S.C. Section 1983, and by the Fourth, Fifth, Eighth and Fourteenth Amendments to United States Constitution, and took numerous overt steps in furtherance of such conspiracy, as set forth above.
26. The defendants acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employment as agents of the City of New York. Said acts by the defendants were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive the plaintiff of her constitutional rights secured by 42 U.S.C. Section 1983, and by the Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution.
27. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages herein before stated.

AS A THIRD CAUSE OF ACTION:

New York City Administrative Code §8-802 et seq.

All Defendants

28. Each of the individual defendants is liable under New York City Administrative Code (§8-802) for the false arrest and imprisonment of the plaintiffs, as well as for causing

plaintiff to be maliciously prosecuted and subjecting him to force without justification.

29. To the extent that any one of the individual defendants did not personally engage in any of the aforementioned conduct, they were aware that it was or would be happening, had ample opportunity to intervene to prevent it from occurring or continuing to occur, and failed to do so.
30. The City of New York, as the individual defendants' employer, is liable under §8-803 for the acts of its employees and agents, including these individual defendants.
31. By reason thereof, the municipal defendant and the individual defendants have violated §8-802 et seq., and caused each plaintiff to suffer emotional and physical injuries, mental anguish, incarceration, and the deprivation of their liberty.

WHEREFORE, plaintiff respectfully requests judgment against the Defendants as follows:

1. On the First Cause of Action against the defendant Officers, compensatory and punitive damages in an amount to be determined at trial, and reasonable attorneys' fees and costs under 42 U.S.C. Section 1988;
2. On the Second Cause of Action, against the Defendant Officers, compensatory damages in an amount to be determined at trial, and punitive damages against the defendants Officers in an amount to be determined at trial;
3. On the Third Cause of Action, against all Defendants, compensatory damages in an amount to be determined at trial, punitive damages against the defendants Officers in an amount to be determined at trial;
4. Such other and further relief as this Court may deem necessary in the interest of justice.

Dated:
June 25, 2024
New York, New York

Respectfully Submitted

Uwem Umoh

UWEM UMOH Esq.
90 Broad Street, 10th Floor
New York, New York 10004
Tel. No: (718) 360-0527
Fax No: (718) 228-4489

**SUPREME COURT OF THE STATE OF NEW YORK
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CITY OF NEW YORK, P.O. CHRISTOPHER
GHEE, P.O. ANTHONY ZANFARDINO

Defendant(s)

VERIFICATION

STATE OF NEW YORK)

) ss.:

COUNTY OF NEW YORK)

UWEM UMOH, being duly sworn says:

I, UWEM UMOH, attorney and representative for plaintiff(s) in the within action, affirm that I have read the foregoing **VERIFIED COMPLAINT** and know the contents thereof. The contents are true to my own knowledge except as to matters therein stated to be alleged upon information and belief, and as to those matters, I believe them to be true. I make this verification an attorney for plaintiff as he resides in a county outside of the undersigned location.

Dated: New York, New York
June 25, 2024

Uwem Umoh
UWEM UMOH